

	30-2023-01350083-CU-CO-CJC	Defendant's Motion to Compel Further Responses to Form Interrogatories, Set One, Request for Monetary Sanctions, and Discovery Referee Continued to 2/14/2025 at 10:00 AM.
7	Jimenez vs. Orozco & Son Transportation, Inc. 30-2023-01342099-CU-OE-CJC	Plaintiff's Motion to Enforce Settlement Plaintiff Mario Jimenez's Motion to Enforce Settlement is GRANTED as to Defendant Orozco & Son Transportation, Inc. and DENIED as to Defendant Irma Orozco. Plaintiff has shown a valid and binding settlement agreement between himself and Defendant Orozco & Son Transportation, Inc., which included all the material terms of the settlement and was accepted while litigation was pending. Plaintiff has further shown Defendant Orozco & Son Transportation, Inc. has not complied with the terms of the settlement agreement. Plaintiff's request for \$5,000 in attorney's fees is DENIED as he is not entitled to fees under the Settlement Agreement. Plaintiff to submit a proposed judgment within 5 days. Plaintiff to give notice.
8	Wu vs. Bob Page, Orange County Registrar of Voters 30-2024-01419457-CU-WM-CJC	Petitioner's Motion for Attorney Fees Petitioner Zhen Wu's motion for attorney fees is GRANTED in the amount of \$8,900. (Code Civ. Proc., § 1021.5.) Petitioner's enforcement of the accuracy of the ballot conferred an important right affecting the public interest by forcing Schneider to change her improper designation. If not corrected, the voters would have been misled into believing she held an occupation she did not hold. The correction conferred a significant benefit on the electorate. (See <i>Lindelli v. Town of San Anselmo</i> (2006) 139 Cal.App.4th 1499, 1516.) The financial burden of this private enforcement warrants subsidizing Wu's attorneys. In a writ case, such as this case, the only relief under the petition is either issuance or nonissuance of the writ. Neither party is seeking damages from the other; no money would be awarded to the petitioner or real party in interest. The only remedy was in correcting the ballot pamphlet or keeping the ballot pamphlet as it was. The ultimate beneficiaries were the voters. Thus, the interest of both sides is nonpecuniary. Schneider's reliance on <i>Willard v. Kelley</i> (2015) 238 Cal.App.4th 1049 is misplaced. In <i>Willard</i>, the court found Woolery's successful defense against the petition did not confer a significant benefit to the electorate. Woolery wanted a designation of Orange Treasurer/CPA, while his opponent wanted him to use his more

		time-consuming job of Deputy Director of Administration for the Riverside District Attorney. The court upheld Woolery's choice because either would have been proper, and neither choice would have deceived the voter. However, the court found that Woolery's victory did not shed light on his views as a candidate, but briefly related to one aspect of his work experience. (<i>Id.</i> at p. 1057.) Here, Schneider's preferred designation as educator likely would have deceived the voters into believing she was a certified teacher or some other type of teaching professional, while her correct designation as elementary library media technician accurately reflects her position. Wu's declaration established the Capistrano Unified School District provides a description of Schneider's actual position and educational experience is a high school degree or its equivalent and the only license is a driver's license. Schneider's opposition does not address the amount of fees sought by Wu. Failure to challenge a contention in a brief results in the concession of that argument. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566.) The court finds attorney Mark Rosen's hourly rate of \$500 and his 17.8 hours of work reasonable. Petitioner to give notice.
9	D&S Washout Systems, Inc. vs. Lennar Homes of California LLC 30-2024-01404442-CU-BC-CJC	Application for Writ of Attachment Continued to 1/24/2025 at parties' request.
10	National Funding, Inc. vs. The Meat Shop of Indianapolis Inc. 30-2024-01375055-CU-BC-CJC	Plaintiff's Motion for Summary Judgment, or in the Alternative, Summary Adjudication Plaintiff National Funding, Inc.'s unopposed motion for summary judgment against Defendants The Meat Shop of Indianapolis Inc. and Larry Miller Jr. is GRANTED. <u>First Cause of Action for Breach of Contract against The Meat Shop of Indianapolis, Inc. ("Borrower"):</u> "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) plaintiff's performance of the contract or excuse for nonperformance, (3) defendant's breach, and (4) resulting damage to the plaintiff." (<i>Richman v. Hartley</i> (2014) 224 Cal.App.4th 1182, 1186.)